

as to his character or previous employment which to his knowledge is false in any material particular, he shall be liable, on conviction under the Summary Jurisdiction Acts, to a fine not exceeding twenty pounds; and if any person makes a written statement as to the character or previous employment of any man which he knows to be false in any material particular, and which he allows or intends to be used for the purpose of the entry or enlistment of that man into His Majesty's naval, military, or marine forces, he shall be liable, on conviction under the Summary Jurisdiction Acts, to the like fine.

3. In section sixteen of the Naval Enlistment Act, 1853 (which imposes a penalty on persons who make or give a false statement upon entering or offering themselves to enter the naval service of His Majesty), the expression "naval service" shall include service in any of the naval reserve forces. Extension of 16 & 17 Vict. c. 69. s. 16 to naval reserves.

4. This Act may be cited as the Seamen's and Soldiers' False Characters Act, 1906. Short title.

CHAPTER 6.

An Act to facilitate the proceedings of the Commissioners appointed to hold an Inquiry respecting the Duties of the Metropolitan Police in dealing with cases of Drunkenness, Disorder, and Solicitation in the Streets.

[22nd June 1906.]

WHEREAS a Commission has been issued by His Majesty whereby the Right Honourable Alfred Lyttelton, K.C., Willoughby Hyett Dickinson, Esquire, M.P., Rufus Daniel Isaacs, Esquire, K.C., M.P., David Brynmor Jones, Esquire, K.C., M.P., and Charles Algernon Whitmore, Esquire (hereinafter referred to as "the Commissioners"), have been authorised and directed to inquire into and report upon the duties of the Metropolitan Police in dealing with cases of drunkenness, disorder, and solicitation in the streets, and the manner in which those duties are discharged, with power to make recommendations thereon:

And whereas it is desirable to make provision for the more effective conduct by the Commissioners of any inquiry which they may be authorised to make:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) The Commissioners shall have all such powers, rights, and privileges as are vested in the High Court, or in any Powers of Commissioners.

judge thereof, on the occasion of any action, in respect of the following matters:—

- (i) The enforcing the attendance of witnesses and examining them on oath, affirmation, or otherwise; and
- (ii) The compelling the production of documents; and
- (iii) The punishing persons guilty of contempt;

and a summons signed by one or more of the Commissioners may be substituted for and shall be equivalent to any formal process capable of being issued in any action for enforcing the attendance of witnesses and compelling the production of documents.

(2) A warrant of committal to prison issued for the purpose of enforcing the powers conferred by this section shall be signed by one or more of the Commissioners, and shall specify the prison to which the offender is to be committed, but shall not authorise the imprisonment of an offender for a period exceeding three months.

(3) Every person who on examination on oath or affirmation before the Commissioners wilfully gives false evidence shall be liable to the penalties for perjury.

(4) Any person may appear before the Commissioners, by counsel or solicitor, if authorised to do so by the Commissioners.

Indemnity to
witnesses.

2.—(1) A person examined as a witness by the Commissioners shall not be excused from answering any question put to him, or from producing any document, on the ground that the answer thereto or production thereof may criminate or tend to criminate him.

(2) Every person examined as a witness, who, in the opinion of the Commissioners, makes a full and true disclosure touching all the matters in respect of which he is examined, shall be entitled to receive a certificate signed by the Commissioners, stating that the witness has, on his examination, made a full and true disclosure as aforesaid.

(3) If any criminal proceeding is at any time thereafter instituted against any such witness in respect of any matter touching which he has been so examined, the court having cognizance of the case shall, on his application, and on proof of the certificate, stay the proceeding.

(4) Nothing in this section shall apply to the case of proceedings for having given false evidence before the Commissioners, or of having procured, or attempted or conspired to procure, the giving of such evidence.

Short title.

3. This Act may be cited as the *Metropolitan Police (Commission) Act, 1906.*